

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 9, 2026 TIME: 8:30 A.M.

No. 25CV04107

TSAI v. PATRICIO

DEFENDANT PATRICIO'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

The motion is granted.

I. BACKGROUND AND MOTION

On December 22, 2025, plaintiff Tsung Tsai (“plaintiff”) filed this complaint for assault and battery against defendant Javier Patricio (“defendant”). The complaint alleges plaintiff and defendant both worked at Golden China restaurant. (Compl. at ¶¶ 8-9.) Plaintiff and defendant engaged in a physical altercation; plaintiff asserts defendant lost his temper and violently hit him. (Compl. at ¶ 11.) Plaintiff seeks punitive and compensatory damages. Defendant was served with the complaint on December 29, 2025; default was entered on February 2, 2026, and then set aside on February 24, 2026, by stipulation and order. On April 21, 2026, plaintiff, self-represented, filed an answer to the complaint.

On April 30, 2026, defendant retained counsel and filed this motion for leave to file a cross-complaint on May 22, 2026, pursuant to Code of Civil Procedure section 426.50. Defendant argues he also sustained injuries because of the altercation and that plaintiff intentionally threw hot liquid onto him. Defendant argues his causes of action arise from the same incident as plaintiff’s complaint and involve the same witnesses, parties, and evidence. Defendant filed a declaration stating that he did not understand that he needed to formally file a cross-complaint to pursue his claims and that he suffered serious burns because of the incident. Defendant attaches a proposed cross-complaint against Tsai for battery, assault, intentional infliction of emotional distress, and negligence. He seeks damages, including punitive.

Plaintiff opposes, arguing that defendant did not establish good faith in delaying to file the cross-complaint. Plaintiff also contends he will suffer prejudice if leave is granted because defendant’s cross-complaint will “substantially expand the scope of discovery” (Opp. at p. 4.)

II. LEGAL STANDARDS AND DISCUSSION

The Code of Civil Procedure 426.50, “[a] party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the

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pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.”

“If a defendant’s cause of action against plaintiff is related to the subject matter of the complaint, it must be raised by cross-complaint; the failure to plead it will bar defendants from asserting it in any later lawsuit. [CCP §426.30, see *AL Holding Co. v. O’Brien & Hicks, Inc.* (1999) 75 Cal.App.4th 1310, 1313-1314.]” (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 6:511.) Thus, defendant’s proposed cross-complaint is compulsory. “[I]f the proposed cross-complaint is compulsory, leave must be granted so long as defendant acted in good faith. [Citations.]” (*Id.* at §6:555.) This case is relatively new as it was filed on December 22, 2025, and defendant just answered April 21, 2026. This motion was brought shortly after defendant retained new counsel. The Court does not find that the cross-complaint would greatly expand the scope of the case because defendant’s claims arise out of the same altercation as plaintiff’s claims. The Court finds defendant acted in good faith in filing the answer and then this motion. There is no trial date set and no other parties to the case. Practically, it makes sense to have all the claims arising out of this incident adjudicated in one case.

The motion is granted. Defendant is directed to file his proposed cross-complaint within 10 days. Plaintiff shall file a responsive pleading within 30 days from the date the cross-complaint is filed.

No. 25CV03871

BOSWORTH v. CITY OF SANTA CRUZ

DEFENDANT CITY OF SANTA CRUZ’S DEMURRER TO FIRST AMENDED COMPLAINT

The demurrer is sustained without leave to amend.

Plaintiff sued the City of Santa Cruz (“the City”) for one cause of action for violation of Cal. Constitution, Art. I, section 7(a), alleging that the City’s current plurality voting method should be prohibited and the Court should order it to use proportional ranked-choice voting. The City demurred to the complaint, and the Court sustained that demurrer with leave to amend. The Court found that the complaint failed to identify a class for equal protection purposes.¹

¹ The original Complaint defined the class as “all voters in the City of Santa Cruz whose votes, by the structural operation of the at-large plurality system, are guaranteed to carry zero weight in electing any member of the City Council.”